

HOUSE No. 1379

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act exempting medications used for the treatment of opioid use disorder from the prior approval process under the Massachusetts Medicaid program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/15/2025</i>

HOUSE No. 1379

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 1379) of Michael P. Kushmerek relative to exempting medications used for the treatment of opioid use disorder from the prior approval process under the Massachusetts Medicaid program. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act exempting medications used for the treatment of opioid use disorder from the prior approval process under the Massachusetts Medicaid program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 51A of Chapter 118E of the Massachusetts General Laws, is hereby amended in
2 paragraph (a) by striking the definition of “Step Therapy Protocol” and inserting in place thereof
3 the following new definition: --

4 “Step Therapy Protocol”, a utilization management policy or program that establishes the
5 specific sequence in which a prescription drug for a specified medical condition is covered by
6 the division or an entity with which the division contracts to provide or manage health insurance
7 benefits; provided, however, the provisions of such utilization management policy or program
8 and any regulations requiring prior authorization for prescription drugs shall not apply to any
9 medications prescribed by a health care provider for the treatment of opioid use disorder.